

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

10. DANIEL J. RUSSELL V. ELIZABETH A. RUSSELL

PFL20200387

On December 30, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders and child support. He filed his Income and Expense Declaration concurrently therewith. There is no Proof of Service for either document.

On January 6, 2026, the Central Sierra Child Support Agency filed a Notice Regarding Payment of Support: Substitution of Payee.

Respondent filed and served her Responsive Declaration to Request for Order on March 13, 2026. She did not file or serve an Income and Expense Declaration.

Petitioner is requesting custody and visitation orders but he does not specify exactly what he is asking the court to order. He is also asking the court to make child support orders but again, he does not specify what exactly he wants ordered.

The request for child support is dropped from calendar due to Petitioner's failure to serve the child support services agency which has substituted in as payee.

Regarding the requested custody orders, due to the ambiguity in Petitioner's moving papers, the court cannot find that the requested orders are in the best interests of the minors when the court doesn't know what is being requested. Accordingly, the RFO is denied.

All prior orders remain in full force and effect.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: THE REQUEST FOR CHILD SUPPORT IS DROPPED FROM CALENDAR DUE TO PETITIONER'S FAILURE TO SERVE THE CHILD SUPPORT SERVICES AGENCY WHICH HAS SUBSTITUTED IN AS PAYEE. THE REQUESTED CUSTODY ORDERS ARE DENIED. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR

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BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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12. JESSICA GAIL SPEARS V. BRIAN DAVID SPEARS

PFL20190720

On January 12, 2026, Respondent filed a Request for Order (RFO) to end spousal support. He filed a Declaration of Respondent and his Income and Expense Declaration concurrently therewith.

There is no Proof of Service for the moving papers, however Petitioner filed and served her Responsive Declaration to Request for Order on March 9th thereby waiving any defect in service. She filed her Income and Expense Declaration and her Memorandum of Points and Authorities concurrently therewith.

This is a post-judgment request to modify spousal support orders and as such the court is required to take evidence on, and address, the Family Code § 4320 factors. The parties are ordered to appear to select trial and Mandatory Settlement Conference dates.

TENTATIVE RULING #12: THE PARTIES ARE ORDERED TO APPEAR TO SELECT TRIAL AND MANDATORY SETTLEMENT CONFERENCE DATES.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.